

HINDUSTAN COPPER LIMITED
(CONDUCT, DISCIPLINE & APPEAL)
RULES-1979

**(As approved by the Board of Directors of Hindustan Copper Ltd. in their
93rd meeting held on 1st December 1979)**

PART I
APPLICATION & DEFINITIONS

1.0 Short Title

These Rules shall be called Hindustan Copper Limited (Conduct, Discipline and Appeal) Rules-1979.

2.0 Application

These Rules shall apply to all employees of Hindustan Copper Limited.

3.0 Definitions

3.1 In these Rules, unless the context otherwise requires:

- (a) Company - means the Hindustan Copper Limited (HCL).
- (b) Board - means the Board of Directors for the time being of Hindustan Copper Limited and includes, in relation to the exercise of powers, any Committee of the Board or any officer of the Company to whom the Board delegates any of its powers.
- (c) Chairman - means the Chairman-cum-Managing Director for the time being of Board of Directors.
- (d) Disciplinary Authority - means the authority so specified in the schedule appended to these rules.
- (e) Competent Authority - means the authority so specified in the schedule appended to these rules.
- (f) Appellate Authority - means the authority so specified in the schedule appended to these rules.
- (g) Reviewing Authority - means the authority so specified in the schedule appended to this rules.

(h) Government - means the Government of India.

(i) Employee - means:

(i) a person in the employment of the company and includes an employee whose services are temporarily placed at the disposal of the Central Government or State Government or any other public sector enterprises or any other authority but does not include a casual employee or work-charged or contingent staff or a workman as defined in the Industrial Employment (Standing Orders) Act 1946.

(ii) a person on deputation to the company from the Central Government or a State Government or any other public sector enterprise or any other authority.

***Explanation**

An employee who has superannuated/separated from the Company shall be deemed to be an employee for a disciplinary action for any misconduct committed by him during his service in the company.

(j) Family - In relation to an employee includes:

(i) the wife or husband, as the case may be, of the employee, whether residing with him or not but does not include a wife or a husband, as the case may be, separated from the employee by a decree or an order of a competent court.

(ii) son or daughter or step-son or step-daughter of the employee and wholly dependent on him but does not include a child or a step-child who is no longer in any way dependent on the employee or of whose custody the employee has been deprived by or under any law.

*** Inserted vide Office Order No. R&P/8.2 dated 1.9.2000**

(iii) any other person related, whether by blood or marriage, to the employee or to such employee's wife or husband, as the case may be, and wholly dependent on such employee.

(k) Public Servant - means a person as mentioned in Section 21 of Indian Penal Code (IPC).

(l) Schedule - means the schedule appended to these rules.

3.2 In these Rules words denoting the masculine gender shall include the feminine gender and words denoting the singular number shall include the plural number and vice-versa.

PART II CONDUCT

4.0 General

4.1 Every employee of the company shall, at all times-

- (a) Maintain absolute integrity;
- (b) Maintain devotion to duty; and
- (c) Refrain from doing anything which is unbecoming of a public servant.

4.2 Every employee holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all employees for the time being under his control and authority.

5.0 Misconduct

5.1 Without prejudice to the generality of the term mis-conduct, the following acts of omission and commission shall be treated as misconduct:

(a) Theft, fraud or dishonesty in connection with the business or property of the company or of property of another person within the premises of the company.

(b) Demanding and/or accepting gratification other than legal remuneration in respect of an official act or for using his influence with any other official*.

(c) Possession of assets disproportionate to his known sources of income*.

*** Amended vide office order No. R&P/8.2 dated 8.12.2005**

(d) Furnishing false information regarding name, age, father's name, qualifications, ability or previous service or any other matter germane to the employment at the time of employment or during the course of employment.

(e) Acting in a manner prejudicial to the interests of the company.

(f) Wilful insubordination or disobedience, whether or not in combination with others, of any lawful and reasonable order of his superior.

(g) Absence without leave or over-staying the sanctioned leave for more than four consecutive days without sufficient grounds or proper or satisfactory explanation.

(h) Habitual late or irregular attendance or wilful absence from duty.

(i) Gross or willful negligence*.

(j) Damage to any property of the company.

(k) Interference or tampering with any safety device installed in or about the premises of the company.

(l) Drunkenness or riotous or disorderly or indecent behaviour in the premises of the company or outside such premises where behaviour is related to or connected with the employment.

(m) Gambling within the premises of the company.

(n) Smoking within the premises of the company where it is prohibited.

(o) Collection without the permission of the competent authority of any money within the premises of the company except as sanctioned by any law of the land for the time being in force or rules of the company.

(p) Sleeping while on duty.

*** Amended vide Office Order No. R & P/8.2 dated 8.12.2005**

- (q) Commission of any act which amounts to a criminal offence involving moral turpitude.
- (r) Absence from the employee's assigned place of work without permission or sufficient cause.
- (s) Purchasing properties, machinery, stores etc. from or selling properties, machinery, stores etc. to the company without express permission in writing from the competent authority.
- (t) Commission of any act subversive of discipline or good behaviour.
- (u) Abetment of or attempt at abetment of any act which amounts to misconduct.
- (v) Cases of misappropriation, forgery or cheating or other similar criminal offences*
- (w) Recklessness in decision making*
- (x) Blatant violations of systems and procedures*
- (y) Exercise of discretion in excess, where no ostensible/public interest is evident*
- (z) Failure to keep the controlling authority/superiors informed in time about any irregularities/shortcomings noticed during the course of work which may adversely affect the interest of the Company*

Note: The above instances of misconduct are illustrative in nature and not exhaustive.

- 6.0 Employment of near relatives of the employees of the company in Private undertakings enjoying patronage of the company.
- 6.1 No employee shall use his position or influence directly or indirectly to secure employment for any person related whether by blood or by marriage to the employee or to the employee's wife or husband, whether such a person is dependent on the employee or not

***Inserted vide Office Order No. R&P/8.2 dated 8.12.2005**

- 6.2 No employee shall except with the previous sanction of the competent authority permit any member of his family to accept employment with any private firm with which he has official dealings or with any other firm having official dealings with the company.

Provided that where the acceptance of the employment cannot await the prior permission of the competent authority the employment may be accepted provisionally subject to the permission of the competent authority to whom the matter shall be reported forthwith.

- 6.3 No employee shall in the discharge of his official duties deal with any matter or give or sanction any contract to any firm or any other person if any member of his family is employed in that firm or under that person or if he or any member of his family is interested in such matter or contract in any other manner, and the employee shall refer every such matter or contract to his official superior and the matter or the contract shall thereafter be disposed of according to the instructions of the authority to whom the reference is made.

7.0 Taking part in demonstrations

No employee shall engage himself or participate in any demonstration which involves incitement to an offence.

8.0 Connection with Press, Radio and Television

- 8.1 No employee shall except with the previous sanction of the competent authority own wholly or in part or conduct or participate in the editing or management of any newspaper or other periodical publications.
- 8.2 No employee shall except with the previous sanction of the competent authority or in the bonafide discharge of his duties, participate in a radio broadcast or television programme or contribute an article or write a letter either in his own name or anonymously, pseudonymously or in the name of any other person to a newspaper or periodical.
Provided that no such sanction shall be required if such broadcast or telecast or such contribution is of a purely literary, artistic, professional or scientific character.

9.0 Criticism of the Government and the company

- 9.1 No employee shall in any radio broadcast or telecast or in any document published under his name or in the name of any other person or in any communication to the press or in any public utterances make any statement:

- (a) which has the effect of an adverse criticism of any policy or action of the Central Government or a State Government or of the company ;
- (b) which is capable of embarrassing the relations between the company and the public.

Provided that nothing in these rules shall apply to any statement made or views expressed by an employee, of a purely factual nature which is not considered to be of a confidential nature, in his official capacity or in due performance of the duties assigned to him.

Provided further that nothing contained in this Rules shall apply to bonafide expression of views by him as an office-bearer of a recognised trade union for the purpose of safeguarding the conditions of service of such employees or for securing an improvement thereof.

10.0 Evidence before Committee or any other authority

- 10.1 Save as provided in sub-rule 3, no employee shall except with the previous sanction of the competent authority, give evidence in connection with any enquiry conducted by any person, committee or any other authority.
- 10.2 Where any sanction has been accorded under sub-rule 1, no employee giving such evidence shall criticise the policy or any action of the Central Government or of a State Government or of the company.
- 10.3 Nothing in this rule shall apply to:
 - (a) evidence given at any enquiry before any authority appointed by the Government, Parliament or State Legislature or the company.
 - (b) evidence given in any judicial enquiry.
 - (c) evidence given at any departmental enquiry ordered by authorities subordinate to the Government.

11.0 Unauthorised communication of information

No employee shall, except in accordance with any general or special order of the company or in the performance in good faith of the duties assigned to him, communicate directly or indirectly any official document or any part thereof or information to any employee or any other person to whom he is not authorised to communicate such documents or information.

12.0 Gifts

*12.1 Save as otherwise provided in these rules, no employee shall accept or permit any member of his family or any person acting on his behalf to: -

Obtain valuable thing, without consideration or with inadequate consideration from a person with whom he has or likely to have official dealings or his subordinates have official dealings or where he can exert influence.

Obtain for himself or for any other person any valuable thing or pecuniary advantage by corrupt or illegal means or by abusing his position as a public servant

Explanation: The expression Gift shall include free transport, boarding, lodging or other services or any other pecuniary advantage when provided by any person other than a near relative or a personal friend having no official dealing with the employee.

Note: (i) A casual meal, lift or other social hospitality shall not be deemed to be a gift.

(ii) An employee shall not accept lavish or frequent hospitality from any individual for official dealings with him.

12.2 On occasions such as weddings, anniversaries, funerals or religious functions when the making of a gift is in conformity with prevailing religious or social practice an employee may accept gift from his near relatives.

12.3 On such occasions as are specified in sub-rule 2, an employee may accept gifts from his personal friends having no official dealings with him but he shall make a report to the competent authority if the value of any such gift exceeds Rs.250/-.

12.4 In any other case an employee shall not accept any gifts without the sanction of the competent authority if the value thereof exceeds Rs.250/-.

Provided that when more than one gift has been received from the same person/firm within a period of 12 months the matter shall be reported to the competent authority if the aggregate value of the gifts exceeds Rs.250/-.

*** Amended vide Office Order No. R&P/8.2 dated 8.12.2005**

13.0 Private trade or employment

- 13.1 No employee shall, except with the previous sanction of the competent authority engage, directly or indirectly, in any trade or business or undertake any other employment.

Provided that an employee may without such sanction undertake honorary work of a social or charitable nature or occasional work of a literary, artistic or scientific character, subject to the conditions that his official duties do not thereby suffer.

- 13.2 Every employee shall report to the competent authority if any member of his family is engaged in any trade or business or owns or manages an insurance agency or commission agency.

- 13.3 No employee shall, without the previous sanction of the competent authority, except in the discharge of his official duties, take part in the registration, promotion or management of any bank or other company which is required to be registered under the Company Act 1956 or any other law for the time being in force or any Co-operative Society for commercial purpose.

Provided that an employee may take part in the registration, promotion or management of a consumer/house-building Co-operative Society substantially for the benefit of employees of the company registered under the Co-operative Societies Act 1912 or any other law for the time being in force, or of a literary, scientific, artistic, professional or charitable society registered under the Societies' Registration Act 1860 or any corresponding law in force.

- 13.4 No employee may accept any fee or any remuneration or any pecuniary advantage for any work done by him for any public body or any private person without the sanction of the competent authority.

14.0 Investment, lending and borrowing

No employee shall, save in the ordinary course of business with a bank, the Life Insurance Corporation or a firm of standing, borrow money from or lend money to or otherwise place himself under pecuniary obligation to any person with whom he has or is likely to have official dealing or permit any such borrowing, lending or pecuniary obligation in his name or for his benefit or for the benefit of any member of his family.

15.0 Insolvency and habitual indebtedness

- 15.1 An employee shall avoid habitual indebtedness unless he proves that such indebtedness or insolvency is the result of circumstances beyond his control and does not proceed from extravagance or dissipation.
- 15.2 An employee who applies to be or is adjudged or is declared insolvent shall forthwith report the fact to the competent authority.

16.0 Movable, Immovable and valuable property

- 16.1 No employee shall, except with previous knowledge of the competent authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise, either in his own name or in the name of any member of his family.
- 16.2 No employee shall, except with the previous sanction of the competent authority, enter into any transaction concerning any immovable or movable property with a person or a firm having official dealings with the employee or his subordinates.
- 16.3 Every employee shall within one month report to the competent authority every transaction concerning movable property owned or held by him in his own name or in the name of a member of his family if the value of such property exceeds ₹ 5000/-*
- 16.4 Every employee shall, on first appointment in the company, submit a return of assets and liabilities in the prescribed form giving the particulars regarding:
- (a) Immovable property inherited by him or owned or acquired by him or held by him on lease or mortgage either in his own name or in the name of any member of his family or in the name of any person.
 - (b) Shares, debentures and cash including bank deposits inherited by him or similarly owned, acquired or held by him.
 - (c) Other movable property inherited by him or similarly owned acquired or held by him if the value of such property exceeds Rs. 5000/-*
 - (d) Debts and other liabilities incurred by him directly or indirectly.

*** Amended vide office order No. R & P/8.2 dated 31.8.88**

16.5 Every employee shall beginning 1st January submit a return of immovable property inherited/owned/acquired once in every year **.

16.6 The competent authority may at any time by general or special order require an employee to submit within a period specified in the order a full and complete statement of such movable or immovable property or acquired by him or on his behalf or by any member of his family as may be specified in the order. Such statement shall, if so required by the competent authority, include details of the means by which or the sources from which such property was acquired.

17.0 Canvassing of non-official or influence

No employee shall bring or attempt to bring any outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service in the company.

18.0 Bigamous marriage

18.1 No employee shall enter into or contract a marriage with a person having a spouse living.

18.2 No employee having a spouse living shall enter into or contract a marriage with any person.

Provided that the Board may permit an employee to enter into or contract any such marriage referred to in the sub-rules above if it is satisfied that;

(a) Such marriage is permissible under the Personal Law applicable to such employee and the other party to the marriage.

(b) There are other grounds for so doing.

18.3* Any employee, who has married or marries a person other than that of Indian nationality, shall forthwith intimate the fact to the competent authority. *

*** Amended vide office order No. R & P/8.2 dated 31.8.88**

**** Amended vide office order No. R&P/8.2 dated 8.12.2005**

19.0 Consumption of intoxicating drinks and drugs

Every employee shall take due care that the performance of his duties is not affected in any way by the influence of any intoxicating drink or drug.

19.1 # Taking part in Politics and Elections:

- i) No employee shall be an office bearer of a Political Party or an organisation which takes part in politics.
- ii) No employee shall take part or assist in any manner in any movement/agitation or demonstration of a Political nature.
- iii) No employee shall take part in an Election to any legislature or local authority; and
- iv) No employee shall canvass in any election to any legislature or local authority.

19.2 @ Prohibition of sexual harassment of working women

- i. No employee shall indulge in any act of sexual harassment of any woman at her work place.
- ii. Every employee who is incharge of a work place shall take appropriate steps to prevent sexual harassment to any woman at such work place.

Explanation: For the purpose of this rule," Sexual harassment" includes such unwelcome sexually determined behaviour, whether directly or otherwise, as: -

- a. physical contact and advances;
- b. demand or request for sexual favours;
- c. sexually coloured remarks;
- d. showing any pornography; or
- e. any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

@ Inserted vide Office Order No. PERS/9/4 dated 20.7.99

Inserted vide office order No.R&P/8.2 dated 13.7.88

PART III
DISCIPLINE

20.0 Suspension

20.1 The appointing authority or any authority to which it is subordinate or the disciplinary authority or any authority empowered in his behalf by the Board by general or special order may place an employee under suspension:

(a) where a disciplinary proceeding against him is contemplated or is pending ; or

(b) where a case against him in respect of any criminal offence is under investigation or trial.

20.2 Where a penalty of dismissal or removal from service imposed upon an employee under suspension is set aside on appeal or on review under these rules and the case is remitted for further enquiry or action or with any other directives the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal or removal and shall remain in force until further orders.

20.3 Where a penalty of dismissal or removal from service imposed upon an employee is set aside or declared or rendered void in consequence of or by a decision of court of law and the disciplinary authority on consideration of the circumstances of the case decides to hold a further enquiry against him on the allegations on which the penalty of dismissal or removal was originally imposed, the employee shall be deemed to have been placed under suspension from the date of the original order of dismissal or removal and shall continue to remain under suspension until further orders.

20.4 An order of suspension made or deemed to have been made under these rules may, at any time, be revoked by the authority which made or deemed to have made the orders or by any authority to which that authority is subordinate.

21.0 Subsistence Allowance

21.1 An employee under suspension shall be entitled to draw subsistence allowance equal to 50% of his basic pay provided the disciplinary authority is satisfied that the employee is not engaged in any other employment or business or profession or vocation. In addition, he shall be entitled to dearness allowance admissible on such subsistence

allowance and any other compensatory allowance of which he was in receipt on the date of suspension provided the suspending authority is satisfied that the employee continues to meet the expenditure for which the allowance was granted.

21.2 Where the period of suspension exceeds 6 months the authority which made or is deemed to have made the order or suspension shall be competent to vary the amount of subsistence allowance for any period subsequent to the period of the first period of 6 months as follows :

(a) The amount of subsistence allowance may be increased to 75% of basic pay and allowances thereon if in the opinion of the said authority the period of suspension has been prolonged for reasons to be recorded in writing not directly attributable to the employee under suspension.

(b) The amount of subsistence allowance may be reduced to 25% of basic pay and allowance thereon, if in the opinion of the said authority the period of suspension has been prolonged due to reasons to be recorded in writing direct attributable to the employee under suspension.

22.0 Treatment of the period of suspension

22.1 When an employee under suspension is reinstated the competent authority may grant to him the following pay and allowances for the period of suspension :

(a) If the employee is exonerated and not awarded any of the penalties mentioned in Rule 23, the full pay and allowances which he would have been entitled to if he had not been under suspension less the subsistence allowance already paid to him;

(b) If otherwise, such proportion of pay and allowances as the competent authority may prescribe.

22.2 In a case falling under sub-clause (a) above the period of absence from duty will be treated as period spent on duty. In a case falling under sub-clause (b) above it will not be treated as a period spent on duty unless the competent authority so directs.

23.0 Penalties

*23.1 The following penalties may be imposed on an employee or an employee who has superannuated/separated from the company, as hereinafter provided, for misconduct committed by him or for any other good and sufficient reasons:

MINOR PENALTIES

- (a) Censure
- (b) Withholding of increments of pay with or without cumulative effect.
- (c) Withholding of promotion.
- (d) Recovery from pay or such other amount as may be due to him of the whole or part of any pecuniary loss caused to the company by negligence or breach of order.

MAJOR PENALTIES

- (e) Reduction to a lower grade or post or to a lower stage in a time-scale.
- (f) Removal from service which shall not be a disqualification for future employment.
- (g) Dismissal.

Explanation: The following shall not amount to a penalty within the meaning of this Rule:

- (i) Withholding of increment of an employee for his failure to pass a prescribed test or examination.
- (ii) Stoppage of an employee at the efficiency bar in the time-scale on the ground of his unfitness to cross the bar.
- (iii) Non-promotion, whether in an officiating capacity or otherwise of an employee to a higher post for which he is eligible for consideration but for which he is found unsuitable after consideration of his case.

*** Amended vide Office Order No. R & P/8.2 dated 1.9.2000**

(iv) Reversion to a lower grade or post of an employee officiating in a higher grade or post on the ground that he is considered after trial to be unsuitable for such higher grade or post or on administrative grounds unconnected with his conduct.

(v) Reversion to his previous grade or post of an employee appointed on probation to another grade or post during or at the end of the period of probation in accordance with terms of his appointment.

(vi) Termination of Service

(a) Of an employee appointed on probation during or at the end of the period of probation in accordance with the terms of his appointment.

(b) Of an employee appointed in a temporary capacity otherwise than under a contract or agreement, on the expiration of the period for which he was appointed or earlier, in accordance with the terms of his appointment.

(c) Of an employee appointed under a contract or agreement, in accordance with the terms of such contract or agreement.

(d) Of an employee on reduction of establishment.

PART IV

DISCIPLINE AND APPEAL-PROCEDURE

24.0 Disciplinary Authority

24.1 The Disciplinary Authority as specified in the schedule or any authority higher than the Disciplinary Authority may impose any of the penalties specified in Rule 23 on any employee.

25.0 Procedure for imposing major penalties

25.1 No order imposing any of the major penalties specified in Rule 23 shall be made except after an enquiry is held in accordance with this Rule.

*25.2 Whenever the Disciplinary Authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehavior against an employee it may itself enquire into, or appoint any public servant/retired Govt. servant/retired officer of Public Sector Enterprises (hereinafter called the inquiring Authority) to enquire into the truth thereof.

25.3 Where it is proposed to hold an enquiry, the Disciplinary Authority shall frame definite charges, on the basis of the imputation of misconduct or misbehavior against the employee. The charges, together with a statement of the imputation of misconduct or misbehaviour on which they are based, a list of documents by which and a list of witnesses by whom, the articles of charges are proposed to be sustained, shall be communicated in writing to the employee who shall be required to submit within such time as may be specified by the Disciplinary Authority (not exceeding 15 days), a written statement whether he admits or denies any of or all the articles of charges.

Explanation: It will not be necessary to show the documents listed with the chargesheet or any other document to the employee at this stage.

*25.4 On receipt of the written statement of the employee, or if no such statement is received within the time specified, an enquiry may be held by the Disciplinary Authority itself, or by any other public servant/retired Govt. servant/retired officer of Public Sector Enterprises or a committee appointed as an Inquiring Authority under sub-rule 25.2

Provided that it may not be necessary to hold an enquiry in respect of the charges admitted by the employee in his written statement. The Disciplinary Authority shall, however record its findings on each such charge after taking such evidence as it may think fit.

*25.5 Where the Disciplinary Authority itself inquires or appoints an Inquiring Authority for holding an inquiry, it may, by an order appoint a public servant/retired Govt. servant/retired officer of Public Sector Enterprises to be known as the Presenting Officer to present on its behalf the case in support of the articles of charge.

*25.6 The employee may take the assistance of any other public servant/retired Govt. servant/retired officer of Public Sector Enterprises and may not engage a legal practitioner for the purpose unless the Presenting Officer appointed by the Disciplinary Authority is a legal practitioner or unless the Disciplinary Authority, having regard to the circumstances of the case, so permits.

*** Amended vide Office Order No.R&P/8.2 dated 5.11.1998**

25.7 On the date fixed by the Inquiring Authority, the employee shall appear before the Inquiring Authority at the time, date and place specified in the notice. The Inquiring Authority shall ask the employee whether he pleads guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the Inquiring Authority shall record the plea, sign the record and obtain the signature of the employee concerned thereon. The Inquiring Authority shall return a finding of guilt in respect of those articles of charge to which the employee concerned pleads guilty.

25.8 If the employee does not plead guilty, the Inquiring Authority shall adjourn the case to a later date not exceeding thirty days, after recording an order that the employee may, for the purpose of preparing his defence :

(i) inspect the documents listed with the chargesheet ;

(ii) submit a list of additional documents and witnesses that he wants to examine; and

(iii) be supplied with the copies of the statements of witnesses, if any, listed in the chargesheet.

Note: Relevance of the additional documents and the witnesses referred to in sub-rule 25.8 (ii) above will have to be given by the employee concerned and the documents and the witnesses may be summoned if the Inquiring Authority is satisfied about their relevance to the charges under inquiry.

25.9 The Inquiring Authority shall ask the authority in whose custody or possession the documents are kept, for the production of the documents on such date as may be specified.

25.10 The authority in whose custody or possession the requisitioned documents are, shall arrange to produce the same before the Inquiring Authority on the date, place and time specified in the requisition notice.

Provided that the authority having the custody or possession of the requisitioned documents may claim privilege if the production of such documents will be against the public interest or the interest of the company in that event, it shall inform the Inquiring Authority accordingly. The Inquiring Authority, shall, on being so informed, communicate the information to the employee concerned.

25.11 On the date fixed for the inquiry, the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the Disciplinary Authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross-

examined by or on behalf of the employee. The Presenting Officer shall be entitled to re-examine the witnesses on any points on which they have been cross-examined, but not on a new matter, without the leave of the Inquiring Authority. The Inquiring Authority may also put such questions to the witnesses as it thinks fit.

- 25.12 Before the close of the prosecution case, the Inquiring Authority may, in its discretion, allow the Presenting Officer to produce evidence not included in the articles of charge or may itself call for new evidence or recall or re-examine any witness. In such case the employee shall be given the opportunity to inspect the documentary evidence before it is taken on record; or to cross-examine a witness, who has been so summoned.
- 25.13 When the case for the Disciplinary Authority is closed, the employee may be required to state his defence, orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded and the employee shall be required to sign the record. In either case a copy of the statement of defence shall be given to the Presenting Officer, if any appointed.
- 25.14 The evidence on behalf of the employee shall then be produced. The employee may examine himself in his own behalf if he so prefers. The witnesses produced by the employee shall then be examined and shall be liable to cross-examine, re-examination and examination by the Inquiring Authority according to the provision applicable to the witnesses for the Disciplinary Authority.
- 25.15 The Inquiring Authority, may after the employee closes his case, and shall, if the employee has not examined himself, generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the employee to explain any circumstances appearing in the evidence against him.
- 25.16 After the completion of the production of the evidence, the employee and the Presenting Officer may file written briefs of their respective cases within 15 days of the date of completion of the production of evidence.
- 25.17 If the employee does not submit the written statement of defence referred to in sub-rule 25.3 on or before the date specified for the purpose or does not appear in person, or through the assisting officer or otherwise fails or refuses to comply with any of the provisions of these rules, the Inquiring Authority may hold the enquiry ex-parte.
- 25.18 Whenever any Inquiring Authority, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise

jurisdiction therein, and is succeeded by another Inquiring Authority which has, and which exercises, such jurisdiction, the Inquiring Authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor, and partly recorded by itself.

Provided that if the succeeding Inquiring Authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interest of justice, it may recall, examine, cross-examine and re-examine any such witnesses as hereinbefore provided.

25.19 After the conclusion of the inquiry, report shall be prepared and it shall contain:

- (a) a gist of the articles of charge and the statement of the imputations of misconduct or misbehaviour ;
- (b) a gist of the defence of the employee in respect of each article of charge ;
- (c) an assessment of the evidence in respect of each article of charge ; and
- (d) the findings on each article of charge and the reasons therefore.

Explanation: If in the opinion of the Inquiring Authority the proceedings of enquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge.

Provided that the findings on such article of charge shall not be recorded unless the employee has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

25.20 The Inquiring Authority, where it is not itself the Disciplinary Authority, shall forward to the Disciplinary Authority the records of inquiry which shall include:

- (a) the report of the inquiry prepared by it under sub-rule 25.14 above ;
- (b) the written statement of defence, if any, submitted by the employee referred to in sub-rule 25.13 ;

(c) the oral and documentary evidence produced in the course of inquiry ;

(d) written briefs referred to in sub-rule 25.16, if any, and

(e) the orders, if any, made by the Disciplinary Authority and the Inquiring Authority in regard to the inquiry.

26.0 Action on the Enquiry Report

26.1 The Disciplinary Authority, if it is not itself the Inquiring Authority may, for reasons to be recorded by it in writing remit the case to the same or another Inquiring Authority for fresh or further inquiry and report and the Inquiry Authority shall thereupon proceed to hold the further inquiry according to the provisions of rule 25 as far as may be.

26.2 The Disciplinary Authority shall, if it disagrees with the findings of the Inquiring Authority on any articles of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose.

26.3 If the Disciplinary Authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in rule 23 should be imposed on the employee, it shall, notwithstanding anything contained in rule 27 make an order imposing such penalty.

26.4 If the Disciplinary Authority having regard to its findings on all or any of the articles of charge, is of the opinion that no penalty is called for, it may pass an order exonerating the employee concerned.

27.0 Procedure for imposing minor penalties

27.1 Where it is proposed to impose any of the minor penalties specified in rule 23, the employee concerned shall be informed in writing of the imputations of misconduct or misbehaviour against him and given an opportunity to submit his written statement of defence within a specified period not exceeding 15 days. The defence statement, if any submitted by the employee shall be taken into consideration by the Disciplinary Authority before passing orders.

27.2 The record of the proceedings shall include:

(i) a copy of the statement of imputations of misconduct or misbehaviour delivered to the employee ;

(ii) his defence statement, if any ; and

- (iii) the orders of the Disciplinary Authority together with the reasons therefore.

28.0 Communication of orders

Orders made by the Disciplinary Authority under rule 26 or rule 27 shall be communicated to the employee concerned, who shall also be supplied with a copy of the report of inquiry, if any, as also reasons for disagreement, if any, with the Inquiring Authority.

29.0 Common Proceedings

Where two or more employees are concerned in a case the authority competent to impose a major penalty on all such employees may make an order directing that disciplinary proceedings against all of them may be taken in a common proceeding and the specified authority may function as the Disciplinary Authority for the purpose of such common proceedings.

30.0 Special procedure in certain cases

Notwithstanding anything contained in Rule 25 or 26 or 27 the Disciplinary Authority may impose any of the penalties specified in Rule 23 in any of the following circumstances:

- (i) where the employee has been convicted on a criminal charge, or on the strength of facts or conclusions arrived at by a judicial trial ; or
- (ii) where the Disciplinary Authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an enquiry in the manner provided in these rules ; or
- (iii) where the chairman is satisfied that in the interest of the security of the company it is not expedient to hold any inquiry in the manner provided in these rules.

* (iv) Notwithstanding the provisions contained elsewhere in the Rules, the following shall also be applicable to the employees of the Company:

(a) That the disciplinary proceedings shall continue even after the retirement or separation/end of the tenure of an employee if such proceedings have been instituted while the employee was in service;

(b) That the disciplinary proceedings, if not instituted while the employee was in service, whether before his retirement or during his reemployment -

(i) shall not be instituted save with the sanction of the Board of Directors in the case of an employee below the Board level, and of the Administrative Ministry in case of a Board level employee, including an officer on deputation from the Central Government even to a post below the Board level.

(ii) shall not be in respect of any event which took place more than two years before such institution.

(iii) shall be conducted by such authority and in such place as the Board of Directors or Administrative Ministry, as the case may be, may direct and in accordance with the procedure applicable to disciplinary proceedings in which an order of dismissal from service could be made in relation to the PSU employee during his service.

(c) That the disciplinary Authority may withhold the amount of Gratuity or any other terminal benefits due to an employee till the finalisation of the disciplinary proceedings, and if found necessary on completion of disciplinary proceedings, may forfeit the gratuity partially or wholly as per the provision of the Payment of Gratuity Act, 1972 and/or any other terminal benefits;

(d) That the Disciplinary Authority may institute disciplinary proceedings against an employee as per the Hindustan Copper Limited (Conduct, Discipline & Appeal) Rules, 1979 for the misconduct committed by him in his past services including the period of deputation in another company;

*** Inserted vide Office Order No. R&P/8.2 dated 1.9.2000**

(e) That where the charges are proved, the Disciplinary Authority may pass orders of dismissal or removal from service or for the forfeiture of terminal benefits including gratuity conveying the displeasure of the Board of Directors or Government as the case may be but for his retirement/separation;

(f) That wherever the Hindustan Copper Limited (Conduct, Discipline & Appeal) Rules 1979 are silent, the relevant provisions in the Rules framed for Central Government employee shall apply to the employees of Hindustan Copper Limited.

31.0 Employees on deputation from the Central Government or State Government or another public sector undertaking or a Local Authority

31.1 Where an order or suspension is made or disciplinary proceeding is initiated against an employee, who is on deputation to the company from the Central or a State Government or another Public Sector Undertaking or a Local Authority, the authority lending his services (hereinafter referred to as the Lending Authority) shall forthwith be informed of the circumstances leading to the order of his suspension, or the commencement of the disciplinary proceeding, as the case may be.

31.2 In the light of the findings of the disciplinary proceedings taken against the employee-

(a) If the Disciplinary Authority is of the opinion that any of the minor penalties should be imposed on him, it may pass such orders on the case as it deems necessary after consultation with the Lending Authority.

Provided that in the event of a difference of opinion between the Disciplinary and the Lending Authority, the services of the employee shall be placed at the disposal of the Lending Authority.

(b) If the Disciplinary Authority is of the opinion that any of the major penalties should be imposed on him, it should replace his services at the disposal of the Lending Authority and transmit to it the proceedings of the enquiry for such action as it deems necessary.

- 31.3 If the employee submits an appeal against an order imposing a minor penalty on him under sub-rule 31.2 (a) it will be disposed of after consultation with Lending Authority.

Provided that if there is a difference of opinion between the Appellate Authority and the Lending Authority, the services of the employee shall be placed at the disposal of the Lending Authority, and the proceedings of the case shall be transmitted to that authority for such action as it deems necessary.

32.0 Appeals

- 32.1 An employee may appeal against an order imposing upon him any of the penalties specified in Rule 23 or against the order of suspension referred to in Rule 20. The appeal shall lie to the authority specified in the schedule.

- 32.2 An appeal shall be preferred within one month from the date of communication of the order appealed against. The appeal shall be addressed to the Appellate Authority specified in the schedule and shall be submitted to the authority whose order is appealed against. The authority whose order is appealed against shall forward the appeal together with its comments and the records of the case to the Appellate Authority within 15 days. The Appellate Authority shall consider whether the findings are justified or whether the penalty is excessive or inadequate and pass appropriate orders within three months of the date of appeal. The Appellate Authority may pass orders confirming, enhancing, reducing or setting aside the penalty or remitting the case to the authority which imposed the penalty or to any other authority with such directions as it may deem fit in the circumstances of the case.

Provided that if the enhanced penalty which the Appellate Authority proposes to impose is a major penalty specified in Rule 23 and an inquiry as provided in Rule 25 has not already been held in the case, the Appellate Authority shall direct that such an enquiry be held in accordance with the provisions of Rule 25 and thereafter consider the record of the inquiry and pass such orders as it may deem proper. If the Appellate Authority decides to enhance the punishment but an inquiry has already been held as provided in Rule 25 the Appellate Authority shall give a show-cause notice to the employee as to why the enhanced penalty should not be imposed upon him. The Appellate Authority shall pass final order after taking into account the representation, if any, submitted by the employee.

33.0 Review

Notwithstanding anything contained in these rules, the Reviewing Authority as specified in the schedule may call for the record of any case within six months of the date of the final order and after reviewing the case pass such orders thereon as it may deem fit.

Provided that if the enhanced penalty, which the reviewing authority proposes to impose, is a major penalty specified in Rule 23 and an inquiry as provided under Rule 25 has not already been held in the case, the reviewing authority shall direct that such inquiry be held in accordance with the provisions of Rule 25 and thereafter consider the record of the enquiry and pass such orders as it may deem proper. If the Reviewing Authority decides to enhance the punishment but an inquiry has already been held in accordance with the provisions of Rule 25, the Reviewing Authority shall give show-cause notice to the employee as to why the enhanced penalty should not be imposed upon him. The Reviewing Authority shall pass final orders after taking into account the representation, if any, submitted by the employee.

34.0 Service of Orders, Notices etc.

Every order, notice and other process made or issued under these rules shall be served in person on the employee concerned or communicated to him by registered post at his last known address.

35.0 Power to relax time limit and to condone delay

Save as otherwise expressly provided in these rules, the authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these rules, for anything required to be done under these rules or condone any delay.

36.0 Savings

- 36.1 Nothing in these rules shall be construed as depriving any person to whom these rules apply of any right of appeal which had accrued to him under the rules which have been superseded by these rules.
- 36.2 An appeal pending at the commencement of these rules against an order made before the commencement of these rules shall be considered and orders thereon shall be made, in accordance with these rules.
- 36.3 The proceedings pending at the commencement of the rules shall be continued and disposed as far as may be, in accordance with the

provisions of these rules, as if such proceedings were proceedings under these rules.

- 36.4 Any misconduct etc. committed prior to the issue of these rules which was a misconduct under the superseded rules shall be deemed to be a misconduct under these rules.

37.0 Interpretation and removal of doubts

If any question or doubt arises as to the application or interpretation of any of these rules, the matter shall be referred to the Chairman whose decision shall be final.

38.0 Amendments

The Board may amend, modify or add to these rules, from time to time, and all such amendments, modifications or additions shall take effect from the date stated therein.

39.0 Repeal of existing Rules

All conduct, discipline and appeal rules presently in force and applicable to any of the employees covered by these rules shall stand repealed with effect from the date these rules come into force and these rules shall prevail over other rules or practices on matters covered by these rules.

40.0 Commencement

These rules shall come into force with effect from the eleventh day of February, 1980.

S C H E D U L E *

(Rule 3.1)

Sl No.	Grades	Disciplinary Authority/Competent Authority	Penalties it can impose	Appellate Authority	Reviewing Authority
1	Employees whose appointment are made by the President of India.	President of India	All	President of India	President of India
2	Rs.20500-26500 to Rs.23750-28550 (E8 & E9)	CMD	All	A committee of functional Directors headed by CMD	Board
3	Rs 13000-18250 to Rs 19500-25350 (E3 to E7)	Functional Directors**	All	CMD	A committee of functional Directors headed by CMD
4	Rs 8600-14600 to Rs 10750-16750 (E1 & E2) and below	Project Head/Executive Director (Personnel)	All	Functional Directors**	CMD

*** Amended vide Office Order No. R&P/8.2 dated 5.11.98**

**** Amended vide letter No. HCL/PERS/9/4 dated 19.04.2002**